

(47)

Tentative Ruling

Re: **Alexandra Seifert vs. Paul Michaelides**
Superior Court Case No. 25CECG03846

Hearing Date: July 1, 2026 (Dept. 501)

Motions: Plaintiff Alexandra Seifert's Motion to Compel Further
Discovery and Sanctions

Tentative Ruling:

To continue the motion to August 11, 2026 at 3:30 pm in Department 501 to allow further briefing as set forth below. Plaintiff, Alexandra Seifert, is ordered to file and serve a supplemental declaration authenticating and attaching copies of defendants' responses to the discovery at issue, and verifications, and all proof of service for the above, no later than the close of business on July 15, 2026.

Explanation:

Plaintiff Alexandra Seifert ("Seifert" or "plaintiff") files this motion to compel further responses from defendants, Paul Leon Michaelides ("Michaelides") and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. ("DDS") (collectively "defendants.") Specifically, Seifert seeks to compel further responses to her Special Interrogatories, Set One and Form Interrogatories from Michaelides, and to compel further production as to Request for Production, Set One from DDS.

The Court continues the motion.

Seifert's Separate Statement in Support of Statement to Compel Further, submitted on March 9, 2026, purports to be in compliance with California Rules of Court, rule 3.1345(c). However, Seifert's declaration in support of her motion, submitted on March 9, 2026, is deficient. It does not provide the entire history of this discovery dispute. Nor does it provide a copy of the very responses Seifert seeks to have us find inadequate. The Separate Statement is not evidence, it merely a tool to aid the Court's review. Without this foundational evidence, the court cannot proceed. (See Cal. Rules of Court, rules 3.1113(j) and (k); the original or copies of all evidence that will be presented to the court at the motion hearing must be served along with the notice of motion and points and authorities [Code Civ. Proc., §1005, subd. (b); *David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP* (2022) 83 CA5th 1027, 1048.]

Furthermore, the Court notes that when an opposing party expressly objects to inadequate notice but then opposes the motion on the merits, the issue of defective notice may be waived. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Here, defendants made substantive arguments to Seifert's combined motion.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 06/29/26
(Judge's initials) (Date)